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Tentative Ruling

(1)

DEFENDANTS EVERGREEN REALTY & ASSOCIATES INC.,
dba HOMESMART EVERGREEN REALTY; LEI ZHANG; AND RANDY RECTOR'S
DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT is SUSTAINED with 10
DAYS leave to amend.

(2)

YONGGUI YANG'S DEMURRER TO SECOND AMENDED COMPLAINT is SUSTAINED
with 10 DAYS leave to amend.

(3) PETITION TO COMPEL ARBITRATION AND

STAY PROCEEDINGS is DENIED; Tomorrow Holding LLC is not a named party in
this action such that it cannot bring forth this motion.

Background

This

case arises from the purchase of real property. Plaintiffs SANA THARA and
SHARIQ AHMED allege the following against Defendants YONGGUI YANG, an
individual, doing business as TOMORROW HOLDING GROUP LLC ("Yang"); EVERGREEN
REALTY & ASSOCIATES INC., a California corporation doing business as
HOMESMART, EVERGREEN REALTY ("Evergreen"), LEI ZHANG, an individual, and RANDY
RECTOR ("collectively, "Evergreen Defendants"): In February 2025, escrow closed
on Plaintiffs' purchase of property owned by Yang. On or about February 8,
2024, Plaintiff moved into the Subject Property and shortly after discovered
significant defects not disclosed including. Plaintiffs allege that the real

estate agent ZHANG, the real estate broker RECTOR, and the real estate brokerage EVERGREEN were fully aware of the material defects and/or that the work was performed by unlicensed contractors, but that said Defendants concealed the material defects, namely as the defects were not disclosed in the Disclosure Documents and the Agent Visual Inspection Disclosure ("AVID").

On

June 12, 2025, Plaintiffs filed suit asserting the following causes of action (COAs):

(1) Breach Of Contract;

(2) Violation Of Civil Code § 1102.6h (A.K.A. Ca Ab-968);

(3) Breach Of Implied Covenant Of Good Faith And Fair Dealing;

(4) Fraud And Deceit – Concealment;

(5) Fraud And Deceit – Intentional Misrepresentation;

(6) Negligence;

(7) Negligence Per Se [Violation Of Civil Code § 2079 Et Seq.].

On

August 11, 2025, Yang filed a motion to quash service of summons.

On

September 8, 2025, the court sustained Defendants Evergreen, Zhang, and Rector's demurrer; according to the minute order, Plaintiffs were ordered to file a First Amended Complaint (FAC) "by no later than end of business on October 8, 2025."

On

October 9, 2025, Plaintiffs filed a FAC.

On

November 10, 2025, the court denied Yang's motion to quash.

On

November 6, 2025, Evergreen Defendants filed the instant demurrer.

On

November 24, 2025, Plaintiffs filed an opposition to the Real Estate Defendants demurrer.

On

December 2, 2025, Evergreen Defendants filed their reply.

On

January 9, 2026, Yang filed a demurrer.

On

February 18, 2026, Plaintiffs filed their opposition to Yang's demurrer.

On

February 24, 2026, Yang filed a reply.

Discussion

The

court is again sustaining both demurrers with leave to amend, but this with only 10 days, for Plaintiffs to comply with the court's 3/3/26 ruling. That ruling stated that "Plaintiffs are to file a second amended complaint (SAC) that asserts separate COAs against the different set of defendants within 20 days of this ruling." For example, as stated in the ruling, "Plaintiffs are to plead separate COAs as to the separate Defendants (Yang and the Evergreen Defendants) for a clearer complaint." Defendants raise this point in their demurrers, but Plaintiffs say they are misreading the court's ruling; Defendants are not. There are different agreements (and now a new agreement (Implied Disclosure Agreement)) and different parties, so the SAC should be clear as to what allegations pertain to what Defendants in separate COAs.

Accordingly,

Plaintiffs are to file a third amended complaint (SAC) that asserts separate COAs against the different set of defendants within 10 days of this ruling.

Re:

Petition

Tomorrow

Holding Group LLC ("Tomorrow"), a Wyoming limited liability company, seeks to enforce the written arbitration agreement contained in the Residential Purchase Agreement between Tomorrow, as seller, and Plaintiffs Sana Thara and Shariq Ahmed as buyers. However, as repeatedly stated in the petition, "Tomorrow is not a named defendant in this action and has not appeared in this action as a defendant." (See e.g., Petition p. 2, 5, 9, 41; Charles Pok Decl., ¶14.) And even though Tomorrow "has consented to this [c]ourt's jurisdiction for the purpose of enforcing the arbitration agreement" (Petition p. 7:16-17) absent being a party to this action, Tomorrow does not have the ability to bring forth any motion.

With

that, the court need not reach the merits of the motion (i.e., predominantly whether Tomorrow waived its right to arbitration).

Conclusion

Based

on the foregoing, the motion is denied.